

**SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER  
OCCURRED ON THE ACTUAL DOCKET — ALL FACTS AND  
IDENTIFIERS ARE FICTIONAL**

Branch source B03: adverse-judgment route marker B03.

# **United States Court of Appeals for the Fourth Circuit**

## **Mara Ellison v. Officer Nolan Rusk**

No. SYN-CA4-26-CV-4104-CF-NEVER-OCCURRED

### **Judgment**

Entered June 30, 2026

In accordance with the published opinion filed today, the Court enters the following judgment. The appeal is **DISMISSED** to the extent Officer Nolan Rusk challenges the district court's conclusion that the summary-judgment record presents genuine disputes about a forearm strike, a movement toward duty equipment, and an immediate threat. Collateral-order jurisdiction does not extend to reweighing those factual and evidentiary matters.

The Court exercises jurisdiction over Rusk's distinct claim that he is entitled to qualified immunity as a matter of law on the plaintiff-favorable facts identified by the district court. On that legal issue, the January 9, 2026 order is **REVERSED**. The Court assumes without deciding that one five-second drive-stun cycle and the accompanying descent violated the Fourth Amendment under those assumptions, but holds that the unlawfulness of this specific conduct was not clearly established on February 3, 2025.

The cause is **REMANDED** to the United States District Court for the Western District of Virginia with instructions to enter summary judgment for Rusk on Mara Ellison's remaining individual-capacity damages claim. The district court may conduct ministerial proceedings consistent with the opinion. Appellant shall recover costs allowed by law, subject to a timely verified bill and any objection.

## **Scope and Issuance**

This judgment does not find that Ellison struck Rusk, reached toward his belt, fled, or posed danger. It also does not find that her contrary description occurred. The assumed facts serve only the legal immunity analysis. The published opinion controls if any phrase in this abbreviated judgment could be read otherwise.

The Clerk shall transmit notice of entry to all counsel. A petition for panel rehearing, a petition for rehearing en banc, or a combined petition is governed by Federal Rule of Appellate Procedure 40 and must be filed within the applicable period. The existence of this judgment alone does not constitute a mandate and does not return authority to the district court before issuance.

Unless a timely filing or later court order alters the calculation, the mandate is scheduled under Rule 41 for issuance seven days after the ordinary rehearing period expires. A motion to stay the mandate pending a petition for certiorari must satisfy Rule 41(d), including service, a substantial question, and good cause. No stay has been granted by this judgment.

The judgment is entered at the direction of Chief Judge Alder and Judges Reed and March. It carries the disposition stated in the opinion: factual appellate target dismissed; legal denial of immunity reversed; summary judgment for Officer Rusk required on remand. The certified opinion, judgment, and direction concerning costs will constitute the mandate unless the Court later directs a formal mandate.

Entered by the Clerk on June 30, 2026.